

1.

CASE #	CASE NAME	HEARING NAME
CVPS2503366	BERGQUIST VS CITY OF DESERT HOT SPRINGS	MOTION TO COMPEL NORMA JEAN BERQUIST'S RESPONSES TO FORM AND SPECIAL INTERROGATORIES SET ONE BY CHRISTIANSEN AMUSEMENTS, INC.

Tentative Ruling: Code of Civil Procedure sections 2030.290(b) and 2031.300(b) allows the propounding party to file a motion to compel responses to interrogatories and requests for production of documents if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a), 2031.300(a).) Plaintiff served responses after the motions were filed. (Young Decl., Exh. 1.) Plaintiff argues this renders the motions moot. However, the responses attached to the opposition are not verified. (C.C.P., §§ 2030.250, 2031.250.) An unverified response is ineffective as it is the equivalent of providing no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [applying to requests for admissions].)

As for sanctions, sections 2030.290(c) and 2031.300(c) provide that “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct., rule 3.1348(a).)

Motion continued to 8.19.26 for Plaintiff to submit verified responses. Verified responses to be submitted by 8.07.26. No further briefing shall be permitted.

Case Management Conference and OSC are continued to 8.19.26.

Request for sanctions to be addressed on the next hearing date.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503366	BERGQUIST VS CITY OF DESERT HOT SPRINGS	MOTION TO COMPEL NORMA JEANNE BERGQUIST'S RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS SET ONE BY CHRISTIANSEN AMUSEMENTS, INC.

Tentative Ruling: Code of Civil Procedure sections 2030.290(b) and 2031.300(b) allows the propounding party to file a motion to compel responses to interrogatories and requests for production of documents if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a), 2031.300(a).) Plaintiff served responses after the motions were filed. (Young Decl., Exh. 1.) Plaintiff argues this renders the motions moot. However, the responses attached to the opposition are not verified. (C.C.P., §§ 2030.250, 2031.250.) An unverified response is ineffective as it is the equivalent of providing no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [applying to requests for admissions].)

As for sanctions, sections 2030.290(c) and 2031.300(c) provide that “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct., rule 3.1348(a).)

Motion continued to 8.19.26 for Plaintiff to submit verified responses. Verified responses to be submitted by 8.07.26. No further briefing shall be permitted.

Case Management Conference and OSC are continued to 8.19.26.

Request for sanctions to be addressed on the next hearing date.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503366	BERGQUIST VS CITY OF DESERT HOT SPRINGS	MOTION TO COMPEL REQUEST FOR ADMISSIONS, SET ONE BY CHRISTIANSEN AMUSEMENTS, INC.

Tentative Ruling: Where a party fails to respond to RFAs, the propounding party may move for an order that RFAs be deemed admitted. (Code Civ. Proc., § 2033.280(b).) “[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein.” (*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979.) However, a responding party’s service, prior to the hearing on the “deemed admitted” motion, of substantially compliant responses, will defeat a propounding party’s attempt under § 2033.280(b) to have RFAs deemed admitted. (*Tobin v. Oris* (1992) 3 Cal.App.4th 814, 827, *disapproved on other grounds*, *Wilcox, supra*, 21 Cal.4th 973, 983, fn. 12.)

Here, Plaintiff served her RFA responses on 7/6/26. Counsel also attached a copy of the responses to his declaration. However, the problem is that the responses attached to the opposition are not verified. (C.C.P., §§ 2033.240(a).) An unverified response is ineffective as it is the equivalent of providing no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [applying to requests for admissions].)

As for sanctions, Code of Civil Procedure § 2033.280(c) provides that “[i]t is *mandatory* that the court impose a monetary sanction ... on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [the] motion.” (Emphasis supplied.)

Motion continued to 8.19.26 for Plaintiff to submit verified responses. Verified responses to be submitted by 8.07.26. No further briefing shall be permitted.

Case Management conference and OSC are continued to 8.19.26.

Request for sanctions to be addressed on the next hearing date.